

tion: if they have no such authority, the party ought to be convicted by course of law before he can be removed.

A removal, without hearing the party removed, is bad.

If a party is disfranchised, and a writ to restore the party, or signify the cause, &c. is awarded in K. B., if a sufficient cause of removal is certified, but which is false, the Court cannot award a writ to restore the party; but the party grieved may have a special action on the case, and upon obtaining judgment, a writ of restitution shall be awarded.

The return of disfranchisement ought to be certain.

James, by the grace of God, of England, Scotland, France, and Ireland, King, defender of the faith, &c. To the Mayor and Commonalty of the borough of Plymouth, in the county of Devon, greeting, &c. Whereas James Bagg, one of the twelve chief burgesses, or magistrates of the borough aforesaid, according to the custom of the borough aforesaid, hitherto used, was duly chosen and made. And whereas the same James, in the office of one of the twelve chief burgesses or magistrates of the borough aforesaid, a long time carried and well governed himself; yet, you the mayor and commonalty of the borough aforesaid, little regarding the aforesaid James, unduly, and without reasonable cause, from the office of one of the twelve chief burgesses and magistrates of the borough aforesaid, unjustly have amoved, in contempt of us, and to the no little damage and grievance of him the said James, and the hurt of his estate, as we, by his complaint, have understood: we therefore to the said James, willing, due, and speedy justice to be done in this behalf, as is just, command you, and every of you, as heretofore we have commanded you firmly enjoining you, that immediately after the receipt of this writ, the aforesaid James, into the aforesaid office of one of the twelve chief burgesses or magistrates of the borough aforesaid you restore, with all the liberties, privileges, and commodities, to the office aforesaid belonging and appertaining; or that you signify the cause thereof unto us, lest in your default, complaint thereof again to us come: [94 a] and how this our writ shall be executed you make to appear to us, from the Day of the Holy Trinity, in three weeks, wheresoever we shall be in England, under the penalty of 40l. this our writ then sending back to us, &c. Witness E. Coke, at Westminster, the 12th day of June, in the 13th year of our reign, of England, France, and Ireland, and of Scotland the 48th.

By the term of Trinity, in the thirteenth year of King James, Rot. 23. execution of this writ doth appear in a certain schedule to this writ annexed, John Clement, Mayor, the answer of the Mayor and Commonalty of the borough of Plymouth to the writ, to this schedule annexed; according to the command of the writ aforesaid, to the lord the King we most humbly certify, that the Lady Elizabeth, late Queen of England, by her letters patent, sealed with the Great Seal of England, bearing date at Westminster the 28th day of Feb. in the 43d year of her reign, for herself, her heirs and successors, granted to the Mayor and Commonalty of the borough of Plymouth aforesaid, and their successors, (amongst other things), that the mayor and recorder of the borough aforesaid, for the time being, during the time that they should happen to be in their offices, and also the predecessors of the said mayor then alive, and for the time being, and their successors, should be justices of the said late Queen, her heirs and successors; to keep the peace in the said borough, and within the limits, precincts, and liberties thereof; and to be kept, and to cause to be conserved and kept, without any command, commission, or warrant for the same to be had, or to be obtained: and further to the said lord the King, we certify, † that within the borough aforesaid,

† He ought to have first prescribed that there had been an incorporation of a mayor, &c. from time whereof, &c. *Vide* 22 H. 6. Prescription 47. 6 E. 6. Dyer 71, &c. (A).

(A) In *Rex v. Sir Robert Atkyns and Others*, 3 Mod. 6. Sir Robert Atkyns *arguendo*, supposes the printed margin in *Bagg's case* to be Lord Coke's own opinion. The marginal note is in the edition 1615, which was, perhaps, the earliest edition; at least, it was an edition published before Lord Coke's death.